

CASE SUMMARY

Harvinder Singh Matharu v. BSES Rajdhani Power Ltd.

CS (DJ) No. 777/2022 | CNR DLWT01-008341-2022 | Civil Court, West District, Tis Hazari Courts, Delhi

COURT	Court of the Civil Judge, West District, Tis Hazari Courts, Delhi
JUDGE	Ms. Susheel Bala Dagar, Civil Judge
DATE OF JUDGMENT	date of judgment (date of inspection / offence: —)
PARTIES	Harvinder Singh Matharu (plaintiff/consumer) v. BSES Rajdhani Power Ltd. (defendant licensee)
STATUTES INVOKED	Sections 126 & 145, Electricity Act, 2003; Specific Relief Act, 1963 (declaration and injunction); Code of Civil Procedure, 1908
RESULT	Civil suit for declaration and injunction. A consumer's civil action against the licensee — seeking a declaration and a mandatory/permanent injunction in respect of his connection — included for comparison as the civil counterpart to the criminal Section 135 prosecutions in this set.

CHARGE BEFORE THE COURT

Nature of the proceeding: A consumer's civil suit against the distribution licensee seeking a declaration and a mandatory and permanent injunction in relation to his electricity connection and the demand raised against him — the civil, consumer-initiated mirror image of the criminal theft complaints that make up the rest of this set.

FACTS

The plaintiff, a consumer of BSES Rajdhani Power Ltd., instituted a civil suit seeking a declaration and mandatory and permanent injunctions against the licensee in respect of his connection and the demand/action taken against him. Unlike the Section 135 prosecutions elsewhere in this set — where the licensee is the complainant and the consumer the accused — here the consumer is the plaintiff and the licensee the defendant.

The proceeding is a civil one governed by the Code of Civil Procedure and the Specific Relief Act, and it engages the electricity statute chiefly through the boundary between civil disputes (assessment/unauthorised use, and the Section 145 bar) and the criminal remedy of a theft prosecution.

REASONING OF THE COURT

HEADNOTE

A consumer's civil suit for declaration and injunction against the licensee — the civil counterpart to a Section 135 prosecution. It is included in this digest set to mark the contrast: where the dispute is about assessment or unauthorised

use rather than dishonest abstraction, the forum is civil (subject to the Section 145 bar and the Section 127 statutory appeal), not the criminal Electricity Court.

The consumer is the plaintiff, not the accused. The proceeding inverts the usual alignment of the theft cases: the consumer sues the licensee for a declaration and injunction, rather than defending a Section 135 complaint. It is a civil action, tried by a civil court under the CPC and the Specific Relief Act.

The electricity statute enters through the civil/criminal boundary. The matter engages the Electricity Act mainly at the boundary between civil disputes — assessments, unauthorised use and the Section 145 bar — and the criminal remedy of a theft prosecution, illustrating that not every electricity dispute is a Section 135 case.

Included for comparative completeness. As the sole civil, consumer-initiated matter among the fifty, it is digested briefly to complete the picture and to contrast the civil forum with the criminal Electricity Court that decides the theft complaints.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Civil Remedy vs Criminal Prosecution

This proceeding marks the civil end of the spectrum. A consumer aggrieved by a demand or by the licensee's action may, in an appropriate case, seek civil relief (declaration/injunction); but where the dispute concerns an assessment for unauthorised use under Section 126, Section 145 bars the civil court and the remedy is the statutory appeal under Section 127. The criminal machinery of Section 135 is reserved for dishonest abstraction — theft — and is distinct from the consumer's civil grievances.

HELD

The matter is a civil suit for declaration and injunction and is recorded here for comparative completeness within the set. Its significance lies in marking the civil/criminal boundary rather than in any finding on a Section 135 theft charge.

SIGNIFICANCE

The only civil, consumer-initiated matter in the set — the mirror image of the theft prosecutions. Three propositions stand out:

- **Not every electricity dispute is a theft case.** Assessment and unauthorised-use grievances are civil; only dishonest abstraction is Section 135 theft.
- **The consumer's civil remedies are limited by the statutory scheme.** Where Section 126 is engaged, Section 145 bars the civil court and Section 127 provides the appeal.
- **Comparative value.** The case anchors the civil end of the spectrum against which the criminal prosecutions can be read.

CITATIONS

The decision turned wholly on the evidence; neither side pressed any case authority, and the Court decided the matter on the record before it.

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.